

CONSTRUCTION AGREEMENT (With Exculpatory Clauses)

This Construction Agreement ("Agreement") is made between the Owner and the Contractor. This Agreement contains multiple exculpatory clauses that limit the liability of the Contractor, subject to applicable laws in India.

1. Scope of Work

The Contractor shall perform the construction work as described in Schedule A. The Contractor shall not be responsible for work beyond the defined scope.

2. Delay & Force Majeure (HIGH RISK)

The Contractor shall not be liable for delays caused by weather, labor issues, supply shortages, government actions, pandemics, or any circumstances beyond the Contractor's control.

3. Limitation of Liability (HIGH RISK)

The Contractor's total liability under this Agreement shall not exceed the total contract value, regardless of cause, including negligence.

4. Waiver of Consequential Damages (HIGH RISK)

The Owner waives all claims for indirect, incidental, or consequential damages including loss of profits.

5. Site Conditions Disclaimer (MEDIUM RISK)

The Contractor shall not be responsible for unforeseen site conditions, underground utilities, or hazardous materials not disclosed prior to execution of this Agreement.

6. Design Responsibility Disclaimer (MEDIUM RISK)

The Contractor shall not be liable for errors or omissions in drawings or specifications provided by the Owner or Architect.

7. Indemnity in Favor of Contractor (HIGH RISK)

The Owner agrees to indemnify and hold harmless the Contractor from all claims except those arising from willful misconduct.

8. No Warranty on Completion Date (MEDIUM RISK)

Any project timelines provided are estimates only, and the Contractor shall not be liable for failure to meet such timelines.

9. Waiver of Claims After Completion (HIGH RISK)

Upon final payment, the Owner waives all present and future claims related to the completed work.

10. Negligence Limitation (MEDIUM RISK)

The Contractor shall not be liable for minor negligence not amounting to gross negligence or fraud.

Clause Risk Classification Summary

Clause	Risk Level
Delay & Force Majeure	High
Limitation of Liability	High
Waiver of Consequential Damages	High
Site Conditions Disclaimer	Medium
Design Responsibility Disclaimer	Medium
Indemnity in Favor of Contractor	High
No Warranty on Completion Date	Medium
Waiver of Claims After Completion	High
Negligence Limitation	Medium